

EXECUTIVE ORDER

EO 21-10

WHEREAS, on August 27, 2021, I terminated the general state of emergency related to the COVID-19 public health threat; and

WHEREAS, on August 27th, 2021, I declared a state of emergency related to staff shortages in the State's healthcare system and for the State's recovery efforts from the COVID-19; and

WHEREAS, the United States Food and Drug Administration (FDA) has given full approval to several COVID-19 vaccines for individuals 16 years of age and older, and are considering full approval for children 5 years and older; and

WHEREAS, the State of Missouri began administering COVID-19 vaccinations in late December 2020 and has administered more than 6,450,000 doses of the COVID-19 vaccine as of the date of this Order; and

WHEREAS, more than 50% of the population of the State of Missouri has initiated the COVID-19 vaccination process and vaccinations are available to all Missourians at no cost; and

WHEREAS, the conditions that placed Missourians at risk of serious infection, death, and hospitalization are overwhelmingly mitigated by the efficacy of the COVID-19 vaccine; and

WHEREAS, the federal government has proclaimed an intent to unilaterally mandate vaccinations from the Executive branch, without supporting Congressional legislation; and

WHEREAS, these federal vaccine mandates will apply to various individuals, privately owned businesses, federal employees, and those who contract with the federal government; and

WHEREAS, these federal vaccine mandates will be litigated by the Attorney General of the State of Missouri and other attorneys general across the United States challenging the authority of the federal mandates; and

WHEREAS, the people of the State of Missouri have individual civil rights as protected by the United States Constitution, the Constitution of the State of Missouri, and various federal and state statutes; and

WHEREAS, it is the stated policy of this administration to encourage voluntary vaccination against COVID-19 while recognizing that federal vaccine mandates represent intrusion into the private right of individuals to make healthcare decisions when federal COVID-19 vaccine mandates are not supported by legislation representing the will of the people; and

WHEREAS, these federal vaccine mandates pose a significant risk to our state economy and workforce, and jeopardize public health by increasing vaccine hesitancy.

NOW, THEREFORE, I, MICHAEL L. PARSON, GOVERNOR OF THE STATE OF MISSOURI, by virtue of the authority vested in me by the Constitution and the laws of the State of Missouri, I hereby order and direct all of the following actions intended to oppose the Biden Administration's overreaching federal

COVID-19 vaccine mandates and to ensure that the State of Missouri protects the individual right of each citizen to make their own healthcare decisions free from federal intrusion:

1. All agencies, boards, commissions, and other entities within the executive branch of state government are directed to cooperate fully and timely with the Attorney General of the State of Missouri in furtherance of any litigation filed by the Attorney General on behalf of the State of Missouri against any federally imposed COVID-19 vaccine mandate or requirement.
2. No agency, board, commission, or other entity within the executive branch of state government shall compel any individual to receive the COVID-19 vaccine pursuant to federal vaccine mandate where such individual objects by reason of sincerely held religious belief or for medical reasons.
3. No agency, board, commission, or other entity within the executive branch of state government shall, under color of state law, impose a penalty on any individual or business for non-compliance with any federally imposed COVID-19 vaccine mandate or requirement where non-compliance is the result of an individual's sincerely held religious belief or for medical reasons.

Nothing in this Executive Order shall be construed to supersede Executive Order 21-09 or to limit the Governor's direct emergency powers as set forth in Chapter 44.

This order shall remain in effect until modified, amended, or rescinded by subsequent Executive Order.

IN WITNESS WHEREOF, I have hereunto set my hand and caused to be affixed the Great Seal of the State of Missouri, in the City of Jefferson, on this 28th day of October, 2021.

[Michael L. Parson's signature]

MICHAEL L. PARSON
GOVERNOR

ATTEST:

[Jay Ashcroft's signature]

JOHN R. ASHCROFT
SECRETARY OF STATE

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